

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 07/22/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 9	25CV481938	In re: 7072 Goldenspur Loop, San Jose, California 95138 claimants	CLAIMS FOR RELEASE & DISTRIBUTION OF EXCESS SURPLUS PROCEEDS The Court acknowledges that this matter was not set for hearing within the time contemplated by Civil Code section 2924j, subdivision (d), following the deposit of the surplus funds with the Clerk. The delay was the result of the Court's clerical oversight and calendaring process and is not attributable to any party. To minimize any further delay, the Court advanced the hearing to July 22, 2026. The Court has reviewed the claims submitted by (1) Carly Santos , the former owner asserting entitlement to surplus proceeds based, in part, on the homestead exemption, and (2) the Franchise Tax Board asserting entitlement based upon an alleged tax lien. Before the Court can determine the proper distribution of the surplus funds, several legal issues require further discussion. Counsel are asked to appear at the hearing 7/22/26 at 9:00 a.m. Appearances in person are preferred; remote is acceptable.
9:01	CASE #	CASE TITLE	RULING
LINE 1	25CV464323	Optio Solutions, LLC, et al vs Bars Transportation, LLC, a California limited liability company	Hearing: Order of Examination

- 00000 -

Calendar Line 7

Case Name: *Jazee Campaigns, LLC v. Vincent Thayer, et al.*

Case No.: 25CV477354

Motion to Stay Proceedings Pending Resolution of Criminal Action

Defendants Vincent Thayer and Gentech Laboratories, LLC move to stay this action pending resolution of the criminal proceedings in *United States v. Thayer*, Case No. 3:25-cr-00167-SI (N.D. Cal.).

Discussion

A trial court has discretion to stay civil proceedings when a parallel criminal proceeding substantially implicates a party's Fifth Amendment privilege against self-incrimination. (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 885-887.) In exercising that discretion, courts balance the competing interests, including: (1) the extent to which the defendant's Fifth Amendment rights are implicated; (2) the burden on the defendant; (3) the convenience of the court and efficient judicial administration; (4) the interests of the plaintiff in proceeding expeditiously and the prejudice that may result from delay; (5) the interests of nonparties; and (6) the public interest. (*Id.* at p. 885.)

The first two factors weigh heavily in favor of a stay. The federal indictment was filed before this civil action commenced and charges Defendant Thayer with an extensive scheme involving COVID-19 testing and related billing practices. Although Plaintiff characterizes this action as a contract dispute concerning unpaid compensation for testing services, the record demonstrates a substantial factual overlap between the subject matter of the civil action and the pending criminal prosecution. At this early stage of the litigation, requiring Thayer to file a verified responsive pleading or otherwise participate in discovery would place him in the constitutionally impermissible position of choosing between asserting his Fifth Amendment privilege and risking adverse consequences in this civil action, or waiving that privilege by providing sworn testimony that could bear upon the criminal case. (See *Pacers, Inc. v. Superior Court* (1984) 162 Cal.App.3d 686, 689-690.)

The Court is not persuaded by Plaintiff's contention that the overlap is too attenuated to justify a stay. The privilege protects not only answers that are directly incriminating but also those that could furnish a "link in the chain" of evidence supporting a criminal prosecution. (*Hoffman v. United States* (1951) 341 U.S. 479, 486.)

The third factor likewise favors a stay. This litigation remains in its earliest stages. Pursuant to the parties' stipulation, Defendants' obligation to respond to the Complaint has been held in abeyance pending resolution of this motion. Staying the action now will conserve judicial resources and avoid the prospect of piecemeal litigation while the criminal case proceeds.

The fourth factor weighs only slightly against a stay. Plaintiff asserts that delay may result in fading memories and lost evidence. While those concerns are legitimate, Plaintiff has not identified any specific evidence that is presently at risk of loss. In addition, Plaintiff filed this action after the criminal indictment had already been filed and after the parties' business